

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kristen Lanham-Hostetter	Team: Team # 1	CCRB Case #: 201108285	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 06/20/2011 6:00 PM	Location of Incident: § 87(2)(b)	Precinct: 44	18 Mo. SOL 12/20/2012	EO SOL 12/20/2012	
Date/Time CV Reported Tue, 06/21/2011 8:15 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/27/2011 1:17 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Gregory Kennedy	26842	948364	PBBX

Officer(s)	Allegation	Investigator Recommendation
A.POM Gregory Kennedy	Force: PO Gregory Kennedy used physical force against § 87(2)(b)	§ 87(2)(b)
B.POM Gregory Kennedy	Abuse: PO Gregory Kennedy threatened to arrest § 87(2)(b)	§ 87(2)(b)
C.POM Gregory Kennedy	Discourtesy: PO Gregory Kennedy spoke obscenely and/or rudely to § 87(2)(b)	§ 87(2)(b)
D.POM Gregory Kennedy	Off. Language: PO Gregory Kennedy made remarks to § 87(2)(b) based upon ethnicity.	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint with the Internal Affairs Bureau on June 21, 2011. § 87(2)(b) complaint was received at the CCRB on June 27, 2011. On June 20, 2011, at approximately 9:00pm at § 87(2)(b) in the Bronx, § 87(2)(b) s § 87(2)(b) daughter, § 87(2)(b) was involved in a verbal dispute with her neighbors. When § 87(2)(b) became aware of the dispute, she tried to intervene. Two officers arrived at the incident and one of the officers asked § 87(2)(b) to go home. As she began to walk away, § 87(2)(b) was grabbed by an officer who was identified by the IAB referral as PO Gregory Kennedy of Patrol Boro Bronx. PO Kennedy threw § 87(2)(b) against a wall, and § 87(2)(b) screamed, "I'm five months pregnant." PO Kennedy threatened to arrest § 87(2)(b) and called her "Ghetto." PO Kennedy tried to grab § 87(2)(b) after he thought that she spit at him. PO Kennedy also called § 87(2)(b) "a bunch of monkeys in the jungle."

On June 28, 2011, the undersigned investigator called the number which was provided by the IAB referral for § 87(2)(b) and left a voicemail. The same day, a first please call letter was mailed to § 87(2)(b) at the address provided in the IAB referral. On June 30, 2011, the investigator called again and left a voicemail. On July 5, 2011, the investigator called again and was told that, though the number had been dialed correctly, it was the wrong number. A final please call letter was mailed to § 87(2)(b) the same day. On July 6, 2011, § 87(2)(b) first please call letter was returned by the USPS as undeliverable. On July 18, 2011, Lexis Nexis results yielded one possible phone number and two possible addresses for § 87(2)(b). The same day, the investigator called the phone number, which was out of service, and sent please call letters to both addresses. On July 26, 2011, a first please call letter sent to one of the addresses was returned by the USPS as undeliverable. On July 29, 2011, a final please call letter was mailed to the remaining address, which was § 87(2)(b) in the Bronx. On August 12, and September 7, 2011, the undersigned investigator called § 87(2)(b) phone number, which was still out of service. On July 5, 2011, and on September 7, 2011, the undersigned investigator verified that § 87(2)(b) was not incarcerated, via the Department of Corrections inmate locator. To date, none of the letters sent to § 87(2)(b) at § 87(2)(b) in the Bronx, have been returned by the USPS as undeliverable.

§ 87(2)(g)

Team: 1

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date